DIGITALAIKART ORIGINAL

India-specific playbooks, tools and templates

The Indian Property Title Check Playbook

2026-27 EDITION

Verify the title before the money leaves your account.
Twelve documents, one 30-minute online run,
and the clauses that keep your leverage.

59 PAGES · 36 CHAPTERS · 8 PRINTABLE WORKSHEETS

RERA Act 2016 · Registration Act 1908 · DILRMP 3.0 · Supreme Court to February 2026

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READ THIS FIRST

What this book is, and what it is not

This is a working manual for the week before you pay for a house, a flat or a plot in India. It is written for the buyer who has a seller in front of them, a token advance being asked for, and no clear idea whether the papers they are holding actually prove anything.

It is not a substitute for a title certificate from an advocate who has read the original documents. A lawyer signs their name to an opinion; this book cannot. What it does is make you competent enough to run the checks yourself, spot the twelve document failures that cause most of the losses, and ask a lawyer the right three questions instead of a vague "is it okay?".

How the book is built

Part One is the document set: what each paper proves, where it comes from, and what a tampered version looks like. Part Two is a 30-minute online run you can do tonight with a laptop and the seller's survey number. Part Three teaches you to read what you pulled. Part Four is the deal itself, from the first token to registration day. Part Five is the red-flag list. Part Six is what to do after you have signed. Part Seven is eight printable worksheets.

The three rules that run through every page

1. **A registered deed is the only thing that transfers title.** Not an agreement to sell, not a general power of attorney, not a will, not possession, not a tax receipt in your name. The Supreme Court has repeated this in 2012 and again in 2025 and 2026.
2. **Every document answers one question only.** An encumbrance certificate does not prove ownership. A khata extract does not prove title. A sanctioned plan does not prove the land is yours. Confusing these is how buyers lose money.
3. **Nothing is verified until you have seen it on a government portal or an original registered document.** Photocopies, WhatsApp images, broker assurances and "my lawyer checked it" are not verification.

> **The date stamp on this edition**
>
> Every rule, section number, portal and judgment in this book was checked in November 2026. RERA provisions are from the Act as amended (the text on India Code carries the Jan Viswas (Amendment of Provision) Act, 2026). Land-record portals get renamed every couple of years, so where a portal name is given, confirm the address on your state's revenue or registration department homepage before you pay a fee.

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Each chapter opens with what it is for, gives you the specific check, and ends with the one line you can say to a seller or a lawyer. Chapters are short on purpose. You will be reading them under time pressure.

The 60-second triage

If you only have an hour before you hand over a token advance, do these five things in this order. Everything else in this book is depth for later.

1. Ask for the **last registered sale deed** of this exact property. Not the agreement, not the allotment letter. The deed. Read the schedule at the end and match the survey or khata number to what the seller told you.
2. Ask for an **encumbrance certificate** covering at least the last 30 years, pulled fresh. Look for the words mortgage, charge, attachment, partition, gift.
3. Search the seller's name and the property on **e-Courts** and on your state RERA portal. A pending suit or a stalled project changes the entire conversation.
4. Check that the seller's **PAN and Aadhaar name matches the name on the deed** exactly, letter for letter, including spelling of initials.
5. Write on the token receipt: *subject to title verification and satisfactory legal opinion*, and pay by bank transfer, never cash.

> **The single sentence that saves the most money**
>
> Put this in every token receipt and every agreement: **"This advance is refundable in full if the seller fails to produce a marketable title, free from encumbrance, within 45 days."** Without it, a token is a gift.

PART ZERO

The ground you are standing on in 2026

India is in the middle of the largest land-records upgrade it has ever attempted, and that changes what a buyer can check from a laptop. It also changes what a broker can fake. Both halves matter.

What the government has actually finished

The Digital India Land Records Modernisation Programme reports near-total saturation on its core components: records of rights computerised in 97.27% of villages, cadastral maps digitised for 97.14% of the country, and 84.89% of villages with text and maps linked. Citizens in 19 states can already download digitally signed, legally valid land records from home, and banks in 406 districts can verify mortgages online.

On 10 September 2026 the Department of Land Resources launched the operational guidelines for DILRMP 3.0, a five-year central sector scheme (2026–2031) with an outlay of ₹565.50 crore. Four pieces of it matter to a buyer:

- **Bhu-Aadhaar, or ULPIN** — a 14-digit alphanumeric identity for every land parcel, generated from the parcel's geo-referenced coordinates. By November 2025 it had been assigned to over 36 crore parcels across 29 states and union territories.
- **Land Stack** — a GIS platform that pulls maps, records of rights, registrations and court matters into one query, launched as a pilot in Chandigarh and Tamil Nadu on 31 December 2025.
- **Registration Seva Kendras** — 75 high-footfall sub-registrar offices to be modernised on the Passport Seva model, with ₹37.5 crore set aside for it.
- **NAKSHA** — urban land mapping that will issue property cards for city parcels, where records have historically been the weakest.

> **What this means for you in practice**
>
> For the first time, a serious buyer can assemble most of the evidence without standing in a queue. It also means that a seller who refuses to let you search, in a state where the search is free and online, is telling you something.

What still is not fixed — and is not going to be by the time you buy

Three gaps survive every digitisation drive, and all three are where money is lost.

First, the register is a record of documents, not of truth. A sub-registrar registers what is presented and stamped. The Supreme Court said this plainly in 2025: registration of a document gives notice to the world that it has been executed, and does not confer unimpeachable validity on it. A forged deed that gets registered is still a forged deed.

Second, an encumbrance certificate only finds what matches the description you typed. Every state portal warns about this in its own words. If the earlier deed described the property with a different survey number, a different door number, or an old resurvey number, the EC can come back clean while the mortgage sits there perfectly registered.

Third, urban property in many cities still runs on three parallel records — the revenue record, the municipal record and the registration record — that do not always agree. A flat can be registered in your name, mutated in the municipal tax register, and still be shown against the builder in the revenue record.

Where the risk actually sits, by property type

You are buying	The record that decides it	The check most buyers skip
Builder flat, registered project	RERA registration + agreement for sale + occupancy certificate	Reading the project's quarterly progress report and the promoter's past projects
Builder flat, unregistered or lapsed project	Sanctioned plan, commencement certificate, OC	Whether the project should have been registered at all under Section 3
Resale flat in a society	Registered sale deed chain + society records + OC for the building	Maintenance dues and pending society transfer charges
Independent house or villa	Sale deed chain + EC + property tax + approved plan	Whether the construction on the plot is authorised
Residential plot in an approved layout	Layout approval + sale deed + EC + conversion order	Whether the layout approval is genuine and current
Plot sold as "gram panchayat approved"	Revenue record + conversion order	Whether the land is still agricultural in law
Agricultural land	Record of rights + tenancy entries + ceiling records	Whether you are legally allowed to buy it at all

Notice what is missing from that table: price, location, "reputation of the builder". Those are commercial questions. This book is about the question that has no appeal once you get it wrong.

PART ONE

The twelve documents

What each paper proves, where it comes from,
and what a tampered version looks like.

PART ONE

The twelve documents that decide everything

There is no such thing as "checking the papers" in the abstract. There are twelve specific documents, each answering one question, each issued by one office. When a deal goes bad, it is almost always because one of these twelve was missing, stale, or in the wrong name.

Print Worksheet W1 before you start. Tick each document off only when you have seen the original or a government-issued digital copy — not a photocopy, not a scan from the broker's phone.

#	Document	The one question it answers
1	Registered sale deed (current owner)	Who owns it in law, and what exactly is the property
2	Chain of earlier deeds / mother deed	How the present owner got it, and whether the chain is unbroken
3	Encumbrance certificate (EC)	What registered transactions touch this property in the search period
4	Revenue record (khata / 7-12 / patta / RTC / jamabandi)	Who the revenue administration thinks holds the land
5	Mutation order or khata transfer	Whether the revenue record was actually updated after the last sale
6	Property tax receipts and no-dues	Whether municipal dues are paid and in whose name
7	Sanctioned building plan	Whether what stands on the land is authorised
8	Commencement certificate (CC)	Whether construction was permitted to start
9	Occupancy or completion certificate (OC/CC)	Whether the building is legally fit to occupy
10	RERA registration and project disclosures	Whether the project is lawfully sold and what was promised
11	Society or association NOC, share certificate, maintenance no-dues	Whether the community record recognises the transfer
12	Search results: e-Courts, CERSAI, ROC charges, IBBI	Whether anyone else has a claim on this property or this seller

Read the columns again

Notice that only document 1 and 2 speak to **title**. Everything else is corroboration. A buyer who collects all twelve is protected. A buyer who collects nine and assumes the rest is exactly the buyer this market is built for.

CHAPTER 1

The registered sale deed, read properly

A sale deed is a short document doing four jobs: identifying the parties, identifying the property, stating the consideration actually paid, and conveying title. Almost every dispute is traceable to a defect in job two.

The five things to read, in this order

1. **The schedule of property, last page first.** Read it before anything else. It carries the survey number, plot number, sub-division, area in square metres or square feet, the four boundaries, and the municipal or khata number. Compare every field against what the seller told you and what the EC says.
2. **The recitals — "whereas the vendor is the absolute owner…"** This paragraph explains how the seller acquired the property. It should name a deed, a date, a document number and a sub-registrar office. If it says "by way of inheritance" or "by way of partition", you need the succession or partition document too.
3. **The consideration clause.** What the deed says was paid, and how. A deed that says ₹15 lakh was paid in cash when the stamp duty was paid on ₹60 lakh is a document that will be used against you later.
4. **The possession clause and the date.** Vacant possession on registration, or a future date? If a tenant sits there, the deed does not remove them.
5. **The registration endorsement.** The last page carries the sub-registrar's office, the document number, the book number, the date of registration and the signatures. A deed that is executed but never presented for registration has not transferred anything.

What a deed cannot tell you

It cannot tell you whether the seller had the right to sell. It cannot tell you whether the property was already mortgaged, because mortgages are recorded separately. And it cannot tell you whether a court has since attached the property. Those are documents 3 and 12 on the list.

> **The four-month clock**
>
> Under Section 23 of the Registration Act, 1908 a document must ordinarily be presented for registration within four months of execution, and the proviso to Section 34 lets the registrar condone a further delay of up to four months on payment of a fine. A seller offering you a deed executed two years ago and "not yet registered" is offering you a problem, not a discount.

Say this to the seller

"Please share the last registered sale deed with the sub-registrar's endorsement page, and the deed before that, so I can see the chain. I will return the originals after my advocate's search." A genuine seller produces both within a day.

> **Before you move to Part Two**
>
> You can name the twelve documents without looking at the list.
> You know which two of them speak to title, and which ten only corroborate.
> You have asked the seller for the deed with the endorsement page, in writing.
> You have not paid anything yet. That is the correct position to be in.

CHAPTER 2

The chain, and why 30 years keeps coming up

The chain of title is the sequence of documents by which the property moved from one owner to the next, ending with your seller. Each link must name the same property, and each transferor must be the person the previous link made the owner. A break in the chain is not automatically fatal — inheritance, partition, court decrees and government grants all create legitimate breaks — but every break needs a document that closes it.

What a complete chain looks like

For a flat bought from a builder: the land purchase by the builder, the development agreement, the sanctioned plan, the agreement for sale to the first allottee, the first sale deed, then each subsequent sale deed, ending with your seller. For a plot in an approved layout: the original land title, the layout approval, the sale deed to the first plot buyer, then the subsequent deeds.

The 30-year question

Thirty years is a convention, not a statute. The reason it survives is that a long, clean EC over 30 years makes it very hard for an old mortgage, an old family partition or an old attachment to be hiding outside the search window. Banks usually ask for 13 to 30 years. For a flat in a registered project, a shorter window is defensible because the builder's title is separately verified. For a plot, an inherited house, or anything that has changed hands inside a family, insist on 30 years.

Situation	Search window that is actually defensible
Flat in a RERA-registered project, first sale	From the date the builder acquired the land, to today
Resale flat, society, single owner since construction	13 to 30 years, plus the society's records
Independent house, inherited at least once	30 years, plus the succession documents
Plot in an approved layout	30 years, plus the layout approval file
Agricultural land	30 years, plus the tenancy and ceiling records

> **The tell**
>
> If a seller says "30 years is not needed, my family has owned it forever", ask for the document that proves the family owned it at the start of the period. "Forever" is not a link in a chain.

CHAPTER 3

The encumbrance certificate: what it proves and what it never will

An EC is a computer-generated statement of the registered transactions recorded against a property description at the sub-registrar's office, for the period you ask for. It is the single most useful document a buyer can pull, and the single most over-trusted.

What an EC does show

- Sales, gifts, exchanges and partitions registered in the period.
- Mortgages, and the release or discharge of those mortgages — but only if the release was itself registered.
- Leases, licences where registered, and attachments recorded by registration.

- In Karnataka, three formats: Form 15 for an EC that lists transactions, Form 16 for a nil EC, and Form 17 for a search run on the executant's name.

What an EC does not show, in any state

- **Unregistered transactions.** An agreement to sell, a family arrangement on plain paper, a Will — none of these appear.
- **A charge registered only with CERSAI.** Securitisation and asset reconstruction charges live in a separate central registry.
- **Court cases, attachments before registration, and injunctions.** These sit with the courts, not the registrar.
- **Municipal or revenue dues.** Property tax arrears, water charges and betterment levies are in municipal records.
- **Encroachment, unauthorised construction, or a wrong survey number.** The EC is only as good as the description you typed.

> **The nil-EC trap**
> A "nil encumbrance" certificate is the most dangerous document in the file, because it looks like an all-clear. Read the search period printed on it. If it covers 2019 to 2026 and the property was mortgaged in 2014, the certificate is accurate and useless.

How to order it so it is actually useful

1. Search by **survey number or property number** first, and separately by **document number** of the last deed. Two searches catch what one misses.
2. In Karnataka, run a **Form 17 name search** on the seller as well. It surfaces deeds filed under a wrong survey number.
3. Ask for the longest period the portal allows, then apply at the sub-registrar for the paper years the portal does not cover.
4. Pull it again within 30 days of registration. An EC has no statutory expiry, but banks and sub-registrars treat a stale one as no document at all.

CHAPTER 4

Revenue records: khata, 7/12, patta, RTC, jamabandi

India has two parallel systems watching the same land. The registration department records *transactions*. The revenue department records *who holds the land* for land revenue and agricultural purposes. They are updated by different offices, at different speeds, and they disagree more often than anyone admits.

State	What the record is called	Where it lives
Karnataka	RTC (pahani), khata extract, survey sketch	Bhoomi — landrecords.karnataka.gov.in
Maharashtra	7/12 extract, 8A, property card	Mahabhumi Bhulekh; digitally signed copies on the DSLR portal
Tamil Nadu	Patta and chitta	e-Services on eservices.tn.gov.in
Telangana	Pattadar passbook, record of rights	Bhu Bharati (which took over from the earlier Dharani platform during 2025)
Andhra Pradesh	Adangal, ROR-1B	Mee Bhoomi — meebhoomi.ap.gov.in

State	What the record is called	Where it lives
Kerala	Land tax receipt, thandaper	ReLIS / revenue department portals
Uttar Pradesh	Khatauni, khasra	Bhulekh UP
Haryana / Punjab	Jamabandi, fard	Jamabandi.nic.in, WebHALRIS, PLRS
West Bengal	Record of rights (khatian)	Banglar Bhumi
Gujarat	7/12, 6, village form	AnyROR / e-Dhara
Rajasthan	Jamabandi, nakal	Apna Khata
Madhya Pradesh	Khasra, khatauni	Sampada

Portal names change, and several of these only load from an Indian connection. Confirm the address on your state revenue department's own homepage before you type a survey number into anything that asks for a fee.

The three mismatches that matter

1. **Name mismatch.** The deed is in the seller's name, the revenue record still shows the seller's father. This is common after inheritance and is fixable by mutation — but fix it before you pay, not after.
2. **Extent mismatch.** The deed says 2,400 sq ft; the record says 2,178 sq ft. A few square feet can be a boundary encroachment or a wrong sub-division number. Never accept "it is only a small difference".
3. **Classification mismatch.** The record shows agricultural use while the seller is offering you a residential plot. Unless there is a conversion order, you are buying farmland with a house drawn on it.

> **What a khata is not**
>
> A khata is a municipal revenue account, not a title document. In Bengaluru, an A-khata is a property that has been assessed and cleared; a B-khata is an entry for a property that is not fully compliant. A B-khata does not mean the property is fake, and an A-khata does not mean the title is clean. It means the municipal corporation has taken a position on the building.

CHAPTER 5

Approvals: sanctioned plan, CC and OC

These three documents answer one question: is this building legal? They have nothing to do with who owns the land, and everything to do with whether you can live in it, mortgage it, or sell it later.

Document	Issued by	What it proves	What breaks without it
Sanctioned plan	Planning authority or municipal corporation	What was permitted to be built: floors, setbacks, coverage, area	Any construction beyond it is unauthorised
Commencement certificate (CC)	Planning authority	Permission to begin construction	Construction before CC is a violation that can be regularised only by penalty
Occupancy certificate (OC)	Local authority after inspection	The building as built matches approvals and is fit to occupy	No lawful possession, no utility connection, difficulty on resale and mortgage

The Supreme Court settled the OC question again on 20 February 2026, in *Parsvnath Developers Ltd. v. Mohit Khirbat*. A homebuyer cannot be compelled to accept possession without an occupancy certificate; obtaining the OC is a statutory pre-condition integral to lawful delivery of possession, and its absence is a deficiency in service. The Court refused a developer's attempt to hand over possession on an "as is where is" basis without the OC, and left the 8% annual interest awarded by the national consumer commission in place.

The check that takes four minutes

- Ask for the OC number and the issuing authority, then verify it on the municipal or planning authority portal. A photograph of a certificate is not a certificate.
- For a flat in a registered project, RERA Section 11(4)(b) makes obtaining the completion or occupancy certificate the promoter's responsibility, and Section 19(10) gives you two months from the OC to take possession.
- Check the sanctioned plan against what you can see: number of floors, setbacks, and whether the parking shown exists. A fourth floor on a plan approved for three is a permanent problem.
- If the OC covers the building but not your floor, you have an unauthorised floor.

> **For plots, the equivalent is the layout approval**
>
> A plotted development needs an approved layout from the planning authority — the names differ by state (BDA, DTCP, HMDA, CIDCO, MMRDA and so on). "Gram panchayat approved" is not a layout approval. It usually means a panchayat has issued a no-objection for something that was never meant to be subdivided into plots.

CHAPTER 6

Society records, no-dues and the charges nobody mentions

In a resale flat, three sets of charges travel with the property and none of them appear in the sale deed: maintenance arrears, the society's transfer charges, and any sinking-fund or repair-fund dues.

- **Maintenance no-dues certificate** from the society, dated, signed and stamped. Ask for the ledger for the last three years, not just the certificate.
- **Share certificate and the society's NOC**, with the transfer fee schedule. Under most state co-operative laws the transfer cannot be recorded without the society's clearance.
- **Pending special assessments.** A building that has approved a facade repair or a lift replacement has a bill coming, and it follows the flat, not the seller.
- **Parking and common-area allocation.** Ask for the allotment letter. A parking slot promised verbally is not transferred by the deed unless the deed schedules it.

For a builder floor or an unregistered association

Where there is no registered society, you are relying on an association of owners that may have no legal personality. Get the maintenance arrangement in writing, the split of common expenses, and a written confirmation from the other owners that they have no claim on your unit or the common areas.

> **The clause that transfers the liability**
>
> An agreement that says "all dues up to the date of registration shall be borne by the seller" is only as good as the seller's ability to pay after you have paid them. Hold back a retention — typically 5% of the consideration — until the society issues a no-dues certificate in your name.

CHAPTER 7

The encumbrances no EC will ever show you

Four registries sit outside the sub-registrar's index. Each is free or nearly free to search, and each has ended deals that looked clean on paper.

Registry	What you are looking for	How to search
CERSAI	A security interest created in favour of a bank or asset reconstruction company, including on property you are about to buy	Public search on the CERSAI portal, by property or by borrower
ROC / MCA	A charge created by a company on its assets, where the seller is a company or the land belongs to one	MCA21 company master data and index of charges
e-Courts	Civil suits, injunctions, execution petitions and attachments involving the seller or the property	ecourts.gov.in case search by party name, plus the district court and high court sites
IBBI / NCLT	Insolvency proceedings against a corporate seller or promoter	IBBI website and NCLT cause lists

Two more checks that cost nothing. Search the seller's name on the RERA portal of your state to see whether they are a registered agent or a promoter with complaints against them. And search the property address on the state RERA portal to see whether the project has any orders passed against it.

> **Why the e-Courts search is not optional**
> A property can be attached by a court order that is never registered, and an injunction can be granted without the registrar knowing. A two-minute name search on e-Courts, run for the seller and for the seller's father if the property came by inheritance, is the cheapest insurance in this entire book.

Say this to the seller

"I will need a certificate or an affidavit that there is no litigation, no insolvency proceeding, and no charge with CERSAI or the ROC, and I will run my own searches to confirm it." A seller with nothing to hide signs it without argument.

PART TWO

The 30-minute online run

Six searches you can finish tonight,
in the order that actually finds things.

PART TWO

The 30-minute online run

This is the part you can do tonight. Six searches, in this order, with the seller's survey or khata number in front of you. Log every result in Worksheet W2, including the null results — a "no records found" is evidence too, and you will want the timestamp later.

Before you start: use a laptop, not a phone. Several state portals do not render properly on mobile, and you will be typing long numbers.

Step	What you do	Time
1	Pin the parcel — survey, sub-division, khata, ULPIN where issued	5 min
2	RERA check — registration, disclosures, complaints, orders	6 min
3	Encumbrance certificate — two searches, longest period available	8 min
4	Revenue record — owner, extent, classification, tenancy entries	4 min
5	Litigation and insolvency — e-Courts, IBBI, CERSAI, ROC	5 min
6	Identity — PAN and Aadhaar name against the deed	2 min

What a clean run looks like

All six steps return the same parcel, the same owner and no surprises. If two of the six disagree, you have found your negotiation, or your exit. Do not proceed to a token until the disagreement is explained in writing.

CHAPTER 8

Step 1 — Pin the parcel before you search anything

Every search is a query against a description. If the description is wrong, the search returns a clean result and you learn nothing. So the first job is to get the identifiers exactly as the last registered deed states them.

The identifier set you need

- District, taluk or tehsil, hobli where applicable, village or ward.
- Survey number and sub-division (hissa) number, or the CTS / plot number in an urban layout.
- Khata number, property tax number (PID), or municipal door number.
- Area as stated in the deed, and the four boundaries as stated in the deed.
- The document number and year of the last registered deed, and the sub-registrar office that registered it.
- The 14-digit ULPIN or Bhu-Aadhaar, where your state has issued one. It is not universal yet — over 36 crore parcels across 29 states and union territories had one by November 2025 — but where it exists it is the cleanest identifier there is.

The four-boundary test

The boundaries in the deed are the cheapest fraud detector available. Read them out loud and match them against the actual site: east, west, north, south, each naming a road, a property, a drain or a survey number. If the deed says "east: road" and the site has a neighbour's wall on the east, stop. If the deed's northern boundary names a survey number that does not adjoin this one on the map, stop.

> **The resurvey problem**
>
> In states that have completed a resurvey — Kerala is the clearest example — the same parcel carries an old survey number and a new resurvey number with a block. Entering only one of the two can return a wrong nil certificate. Ask the seller for both numbers and search both.

CHAPTER 9

Step 2 — The RERA check, field by field

RERA registration is not a certificate of quality. It is a disclosure obligation, and the disclosure is the useful part. Six things to read on the project page.

1. **The registration number and its validity.** It must be on the project page and on every advertisement. A project advertised without one, in a state where registration applies, is being sold outside the law.
2. **Whether the project needed to register at all.** Section 3(2)(a) exempts land up to 500 square metres or up to eight apartments, counting all phases, and a state may lower that threshold. A promoter who carved a 40-flat project into five phases of eight flats is relying on you not to notice the Explanation to Section 3: in a phased project, every phase is a standalone project and needs its own registration.
3. **The declared completion date and the quarterly progress report.** The QPR is the only honest measure of whether the tower you are looking at is being built at the pace the agreement claims.
4. **The promoter's past projects in the last five years**, with their current status and any delay — this is part of the Section 4 disclosure, not a favour.

5. **Pending approvals**, and the sanctioned plans uploaded on the page. Compare the number of floors and units with what you are being shown.
6. **Complaints and orders.** Most state portals publish orders passed by the authority and the adjudicating officer against the project or the promoter.

The two provisions that give you leverage later

Section 13 forbids a promoter from taking more than 10% of the cost of the unit as an advance or application fee before a written agreement for sale is executed and registered. Section 18 gives you interest for every month of delay, at the rate your state rules prescribe, or a refund with interest if you choose to exit. Neither is a threat you have to make. Both are simply true, and a promoter who knows you know them behaves differently.

> **Where RERA does not help you**
>
> RERA governs projects. It does not verify the title of a resale flat, it does not clean a plot's revenue record, and it does not apply to a project that genuinely falls under the Section 3(2) exemption. If the seller is an individual, RERA is not your instrument — Parts One and Three are.

CHAPTER 10

Step 3 — Pulling the EC in your state

Every state runs its own registration portal, and the honest differences between them are: how far back the online data goes, and whether you can search by survey number, door number or document number.

State	Portal	Online data starts	Search by
Karnataka	Kaveri 2.0	1 April 2004 (earlier years at the SRO in Form 22)	Survey and hissa, khata, plot, or executant name (Form 17)
Telangana	Registration and Stamps Department	1 January 1983	Document number, house or apartment details, survey number
Andhra Pradesh	IGRS / EC portal	1983	Survey, house or flat, document number
Maharashtra	IGR eSearch (free Index-II from 1985)	1985	Property number (survey, CTS, gat, plot, milkat) or document number
Tamil Nadu	TNREGINET	Varies; document-number search from 2018 for previous documents	Survey wise, plot or flat wise, ward and block wise, document number
Kerala	Registration department / PEARL	Varies	Resurvey number with block, and old survey number
Uttar Pradesh	IGRSUP	Varies	Name, registration number, khasra
Odisha	IGR Odisha	Varies	Plot and khata
Bihar	Bhumijankari	Registered documents to 15 December 2024 on the search module	Serial number, party name, advance search

Fees are set by each state and change. Karnataka's department lists ₹35 for the first year searched and ₹10 for every additional year, on top of an application fee. Telangana's published table shows ₹200 per certificate up to 30 years and ₹500 beyond that. Maharashtra's published table prices a search with report covering up to twelve years at ₹300, and each additional year at ₹25. Confirm the

amount on the payment screen before you pay — and note that every one of these portals says the download is for information, with the certified copy coming from the sub-registrar.

> **The five-minute trick that catches most hidden mortgages**
> Run the search twice: once by property description, once by the document number of the last deed. Then read the entries in reverse order, newest first, and look only at the "nature of document" column. Mortgage, charge, attachment, court decree, partition, gift, release. If a mortgage appears with no matching release later in the list, that is the whole conversation.

CHAPTER 11

Step 4 — Reading the revenue record online

The revenue record is not evidence of title, but it is evidence of what the state believes. Three columns carry the risk.

- **The holder column.** It should name your seller. If it names a deceased ancestor, the mutation after inheritance was never done — ask for the legal heir certificate, the survivorship documents and the mutation application.
- **The extent column.** Match it against the deed to the square metre. A mismatch under 1% is usually rounding; anything larger is a sub-division, an encroachment or a wrong number.
- **The remarks and tenancy columns.** In many states these carry entries for government grants with conditions, prohibitions on transfer, land-ceiling declarations, and cultivation rights. A tenancy entry can survive a sale and put a sitting cultivator on your land.

The entries that should stop you

- A remark that the land is "assigned", "granted" or "sarkari" with a condition against transfer.
- A tenancy or cultivation entry in the name of someone other than the seller.
- A land-ceiling or surplus declaration that has not been closed.
- A "disputed" or "under litigation" flag, where the state portal carries one.
- Classification as agricultural where you are being sold a residential plot.

> **Mutation is not ownership**
> Getting your name into the revenue record — mutation, khata transfer, naamantaran — is an administrative update after a transfer. It does not create title, and the absence of mutation does not destroy it. But a record that never gets updated is how the next buyer ends up in court, so do it within weeks of registration.

CHAPTER 12

Step 5 — Litigation, insolvency and charges

Four searches, all free, all done in under five minutes if you have the names.

1. **e-Courts party search.** Search the seller's full name, and the name of the person the seller bought from. Civil judges, district courts and high courts all publish cause lists and case status. Look for suits for specific performance, partition, declaration, injunction, and execution petitions.
2. **IBBI.** Search the corporate debtor list if the seller is a company, and the individual insolvency list where applicable. A promoter in insolvency cannot deliver a clean title.
3. **CERSAI.** Public search for security interests. A bank charge that has not been released is a mortgage on your property even if the sub-registrar's index missed it.

4. **ROC / MCA.** If the land sits on a company balance sheet, check the index of charges on MCA21.

Reading a case you find

Do not panic at a case number, and do not ignore one. Read the parties, the relief claimed, and the stage. A partition suit among the seller's relatives that does not name this property is background noise. A suit for specific performance over this survey number is a stop sign, whatever the seller says about it being "an old matter".

> **The affidavit that costs nothing**
>
> Ask for a signed declaration from the seller: no pending litigation affecting the property, no insolvency proceeding, no charge with CERSAI or the ROC, no dues to any authority, and no agreement to sell with any third party. Attach it to the agreement. If it turns out to be false, you have a documented misrepresentation instead of a memory.

CHAPTER 13

Step 6 — Identity, authority and the power of attorney problem

Half of all title fraud is not about the property at all. It is about who signed.

The name-match test

Compare, letter for letter: the name on the sale deed, the PAN card, the Aadhaar, the bank account that will receive your money, and the revenue record. Initials expanded differently, a middle name dropped, a spelling changed after marriage — each of these becomes a "please provide a link document" at the registrar's counter, and a "who is this person?" in court ten years later.

When the seller is not the owner

- **A power of attorney holder** can sign a sale deed only if the power expressly authorises sale, and only while the principal is alive and the power subsists. The Supreme Court has been consistent: a GPA is an instrument of agency, not a conveyance.
- **Co-owners.** Every owner on the deed must sign, or produce a registered power of attorney, or a partition deed that gives the seller sole right to this portion. One brother signing for three is not a sale.
- **Legal heirs.** Where the owner has died, you need the succession document — probate where required, legal heir certificate, or a registered family settlement — and every heir must join.
- **Minors.** A minor's property can be sold only with the permission of the court, and the sale must be for the minor's benefit.
- **A company.** Board resolution, authorised signatory, and a check that the company still exists on MCA21.

> **The 2025 restatement, in one line**
>
> *Ramesh Chand (D) through LRs v. Suresh Chand*, decided on 1 September 2025, upheld a line the Court had already used in *Suraj Lamp* in 2012 and repeated through 2025: a power of attorney is not a sale. In the same year, *M.S. Ananthamurthy v. J. Manjula* held that a general power of attorney is revocable unless coupled with an interest, and that a sale executed by a power holder after the principal's death is invalid.

The four documents to demand when a power of attorney is in play

1. The original registered power of attorney, with its registration number and the schedule of the property it covers.
2. The principal's identity documents, and a live video call or physical meeting if the principal is abroad.
3. A certificate from the principal, dated within the last 30 days, confirming the power subsists and has not been revoked.
4. Confirmation that the principal has not executed any other sale, agreement or mortgage on this property.

Before you move to Part Three

All six searches are logged in Worksheet W2, with the time and date.
The EC covers the longest period the portal allows, and you know which years still need a manual search.
Two independent identifiers returned the same parcel, the same owner and the same extent.
Any mismatch is written down and being explained by the seller in writing, not on a call.

PART THREE

Reading what you pulled

Area, encumbrance, boundaries, authority, conversion, and the undivided share.

PART THREE

Reading what you pulled

You now have a folder of documents. Most buyers stop here and hand the folder to a lawyer with the words "please check". The next seven chapters are what the lawyer is checking, so that you can follow the answer, disagree with it, and pay for an opinion on the two points that actually matter instead of on the whole file.

The rule for this part: every number in a property document is a claim, and every claim has a source. Find the source, or treat the number as a rumour.

You are reading	The question you are answering	Chapter
The schedule and the area figures	Am I buying the area I think I am buying?	14
The EC entries	What has this property been used for?	15
A nil EC	Is the nil real, or is it a search failure?	16
Boundaries and extents	Is the thing on the ground the thing in the deed?	17
A GPA, an agreement to sell, a will	Does any of this give the seller a right to sell?	18
Agricultural records	Am I even allowed to buy this?	19
A flat's share of land	What do I actually own when the building ages?	20

CHAPTER 14

Area: carpet, built-up, super built-up, and what RERA changed

Three different numbers get used for the same flat, and the gap between the smallest and the largest is often 30%. The largest number is the one on the brochure. The number you can actually walk on is the smallest.

Term	What it counts	Typical gap
Carpet area	The net usable floor area inside your walls	The baseline
Built-up area	Carpet area plus the area of your internal and external walls	8–15% more
Super built-up area	Built-up area plus your share of lobbies, stairs, lifts and common areas	20–35% more than carpet

RERA gave one of these a legal definition. Section 2(k) defines carpet area as the net usable floor area of an apartment, excluding the area covered by external walls, areas under service shafts, exclusive balcony or verandah area and exclusive open terrace area, but including the area covered by internal partition walls. For a registered project, that definition is the number that must be disclosed, and the number on which your price per square foot should be calculated.

The check

- Ask for the carpet area in writing, and compare it with the agreement for sale and the RERA disclosure. Three documents, one number.
- Measure one room yourself. If the master bedroom is quoted at 14 by 12 feet and measures 12 by 10, the rest of the brochure is fiction too.
- For an under-construction flat, the agreement must state the carpet area and the sanction for any variation. Section 14(2) prevents alterations to the sanctioned plans and specifications without consent — two-thirds of allottees for common areas, and your own consent for your unit.
- For a resale flat, ignore the builder's old brochure entirely and use the area stated in the sale deed and the property tax record.

> **Price per square foot is a negotiation tool, not a fact**
>
> Divide the price by the carpet area, not the super built-up area. On a 1,000 sq ft super built-up flat with 700 sq ft carpet, a ₹6,000 per sq ft quote is really ₹8,571 per sq ft. Do this before you compare two projects, because the brochure numbers are not comparable.

CHAPTER 15

The EC, line by line

An EC is a table. Every row is a registered document, with a document number, a year, the parties, the nature of the transaction, the extent and the consideration. Read the "nature" column first, then the parties, then the extent.

Nature of document	What it means for you	What you must ask for
Sale deed	A transfer. This is the spine of your chain.	The deed itself, and the deed before it
Mortgage / hypothecation	The property was security for a loan	The registered release or discharge deed, with its document number

Nature of document	What it means for you	What you must ask for
Simple mortgage / equitable mortgage	A loan secured without possession	Release, plus a bank no-dues letter
Release deed	One co-owner gave up their share	The release itself, and confirmation of who remained
Partition deed	A family divided property	The partition deed and the schedule that assigns this parcel
Gift deed	A transfer without consideration	The gift deed, and whether it was by a person competent to gift
Settlement deed	Usually a family arrangement	The deed, plus the family tree
Lease / lease-cum-sale	Possession may sit with someone else	The lease, its term, and whether it is still running
Agreement to sell (if registered)	Someone may already have a right to specific performance	The agreement, and whether it was cancelled or performed
Power of attorney (if registered)	Someone else may be able to deal with the property	The power, and whether it was revoked
Court decree / attachment	A court has taken a position on this property	The decree, its current status, and whether it binds you

The single most useful pattern to look for is an **unmatched mortgage**. A mortgage entry with no release later in the same EC, over the same property, in the same period, means one of two things: the loan is still alive, or the release was never registered. Both need to be resolved before you pay.

> **Read the last three rows first**
>
> Fraud is usually recent. Start at the bottom of the EC and work upwards: the most recent entries are the ones the seller will have to explain, and the ones that a hurried seller most often hopes you will not read.

CHAPTER 16

When the EC says nil and the encumbrance is real

A nil EC is not a finding. It is the absence of a finding, and there are five routine reasons it happens.

1. **The search period is too short.** The certificate is accurate for 2019–2026; the mortgage was registered in 2013.
2. **The description did not match.** You searched by the current survey number; the older deed used the pre-sub-division number, or a door number that was renumbered by the municipality.
3. **The portal data does not go back that far.** Karnataka's online EC starts from 1 April 2004; Telangana's from 1 January 1983; Maharashtra's free index search from 1985. Everything earlier is on paper at the sub-registrar's office.
4. **The transaction was registered at a different sub-registrar office**, because the property was described under a different village or ward at the time.
5. **The encumbrance is not in the registration system at all** — a CERSAI charge, a court attachment, a municipal charge, an unregistered family arrangement.

How to test a nil

- Search by a second identifier. If the survey-number search is nil, run the document-number search on the last deed, and the name search where the state offers one.

- Ask the sub-registrar for a manual search of the years the portal does not cover, and get the search result in writing with the years stated on it.
- Compare the area and boundaries in the EC against the deed. A clean EC over a slightly different extent is a search over a different property.
- Run the CERSAI and e-Courts checks anyway. Neither appears on any EC in any state.

> **The line to use with a seller who resists**
> A seller who says a 30-year search is unnecessary is usually a seller who has not done one either. "I am not suggesting anything is wrong. I am buying the search, not doubting you." It is hard to refuse and impossible to argue with.

CHAPTER 17

Boundaries, extents and what is actually on the ground

Paper title and physical possession diverge in three specific ways, and each has a different fix.

Encroachment

The building or the compound wall sits outside the deed boundaries, or a neighbour's structure sits inside them. A surveyor's sketch and a physical measurement settle it. If the encroachment is by the seller onto government land, you are buying a liability. If it is a neighbour onto your land, you are buying a lawsuit.

Unauthorised construction

The plot is authorised; the structure on it is not. Compare the sanctioned plan against what stands. An unauthorised floor or an unauthorised outbuilding can usually be regularised by penalty in states with a compounding policy, and cannot be regularised at all in others. Ask the planning authority what its current policy is, in writing.

Undivided share and the common areas

In a plotted layout, the roads and parks are usually vested in the layout owner or the local body, not in the plot buyers. Ask who owns the roads, who maintains them, and whether the layout has been handed over. In a flat, your share of the land is the undivided share stated in the deed — check it exists, and check it is proportionate to what you are paying.

> **The four questions to ask on site, with the deed in your hand**
> Is the boundary on the ground the boundary in the schedule? Is the built area the sanctioned area? Who occupies the property today, and under what right? Who owns the road, the park and the common areas, and who pays to maintain them?

CHAPTER 18

The agreement-to-sell, GPA and will family

This is the most misunderstood area of Indian property law, and the misunderstanding runs in the seller's favour. The position has been restated so often that it is now beyond argument.

What the Supreme Court has said, in order

Case	Year	The holding, in one line
Suraj Lamp & Industries v. State of Haryana	2012	Immovable property can be transferred only by a registered deed of conveyance; SA/GPA/will transactions convey no title
M.S. Ananthamurthy v. J. Manjula	2025	An unregistered agreement to sell, even with a power of attorney, creates no proprietary interest; a GPA is revocable unless coupled with interest
Vinod Infra Developers v. Mahaveer Lunia	2025	An unregistered agreement to sell confers no title and does not protect possession
Ramesh Chand (D) through LRs v. Suresh Chand	2025	A power of attorney is not a sale; Section 53A is a shield available only to a transferee in possession
Parsvnath Developers v. Mohit Khirbat	2026	Possession cannot be forced on a buyer without an occupancy certificate

What each document actually does

- **Agreement to sell** — creates a right to sue for specific performance. It is a contract, not a conveyance. It does not make the buyer the owner, and it does not stop the seller from selling to someone else.
- **General power of attorney** — creates an agency. The holder can act in the principal's name while the agency subsists. It transfers nothing, and it dies with the principal.
- **Will** — takes effect only on death, can be revoked at any time before death, and must be proved after death in accordance with the Indian Succession Act.
- **Possession** — relevant to Section 53A of the Transfer of Property Act, which protects a transferee who has part-performed and is in possession. It is a defence, not a title.

> **If you already hold papers like these**
>
> You are not without options. The Court in Suraj Lamp expressly left open the route of completing the title by getting a registered deed of conveyance executed, and such documents can support a suit for specific performance or a defence under Section 53A where possession exists. What you should not do is pay the balance of the price against a promise to register later. Get the deed registered, or get a court order.

The one line to remember

If a seller offers you an agreement to sell plus a GPA plus a will, in place of a sale deed, they are offering you a discount on stamp duty in exchange for the ownership. Decline politely and move on.

CHAPTER 19

Agricultural land, conversion and who is allowed to buy

India's most expensive property mistakes are made on land that was never legally buildable. Four checks, in this order, before you look at anything else.

1. **Classification.** Read the revenue record. If the land is recorded as agricultural, the use you are planning requires a conversion order — called DC conversion in Karnataka, an NA order in Maharashtra, NALA in Telangana, and other names elsewhere. A layout drawn on agricultural land is a drawing, not a plot.
2. **Who may buy.** Several states restrict the purchase of agricultural land by non-agriculturists, by persons without a specified income source, or by persons outside the state. The rules differ sharply.

Ask the tehsildar's office, in writing, whether you are an eligible purchaser for this parcel.

3. **Ceiling and surplus.** Land-ceiling laws cap holdings, and a parcel declared surplus can be resumed by the state. Check the ceiling records, not just the current record of rights.
4. **Tenancy and cultivation.** A recorded tenant or cultivator can outlive a sale. Check the tenancy columns and ask for a possession certificate.

The conversion order itself

A conversion order is a document with a number, a date and conditions. Read the conditions: many conversions carry a condition that construction must begin within a stated period, or that a percentage of the land must be surrendered, or that the conversion lapses if the land is not used for the stated purpose. An order that has lapsed is worse than no order, because it looks like compliance.

> **The green-belt and zone trap**
>
> Even converted land can sit in an agricultural zone, a green belt, a coastal regulation zone or a notified forest area, where the local plan forbids the use you intend. Ask the planning authority for the zoning certificate for the survey number, in writing, before you pay anything.

CHAPTER 20

Flats: what you own when the building is forty years old

When you buy a flat you are buying two things: the unit, and an undivided share in the land beneath the building. The second one is the part nobody explains, and it decides what happens when the building is redeveloped.

The three numbers to find in your deed

- **The undivided share (UDS)** of land, usually expressed as a fraction or as an area in square feet. If the deed does not state it, the flat is not properly conveyed.
- **The carpet area** of the unit, as defined in RERA Section 2(k) for registered projects.
- **The parking and common-area allocation**, with the basis for it.

Why the UDS matters more than the view

On redevelopment, the developer is buying land. Your negotiating position is your share of it. Two flats of identical size in the same building can carry different UDS if they were sold in different phases. Ask for the society's UDS statement, and compare.

> **The documents a society must have, and often does not**
>
> The conveyance deed in favour of the society, the occupation certificate, the approved plans, the share register, and the sinking fund statement. A society that has never been conveyed the land is a society that cannot consent to redevelopment, and every owner in it is stuck until that is fixed.

The one question for a resale flat

"Has the society been conveyed the land, and does my share appear in the share register?" If the answer is no or unclear, you are buying into a structural problem that no discount compensates for.

Before you move to Part Four

You can state the carpet area and the undivided share of land, in numbers.
You have read every EC entry newest first, and no mortgage is unmatched.
You know whether the land is converted, whether the building has an OC, and whether the layout is approved.
You have not accepted a power of attorney, an agreement to sell or a will in place of a deed.

PART FOUR

The deal, clause by clause

Token, agreement, payment, retention, registration and possession.

PART FOUR

The deal, clause by clause

Title is the first half of the risk. The second half is the contract: how much you pay, when, against what, and what happens if the other side stops performing. A clean title with a badly drafted agreement still ends in court.

This part moves in the order money moves. Token, advance, agreement, registration, possession. At every stage the question is the same: what is my exit, and what does it cost?

Stage	The money at risk	The protection you must have before paying
Token / earnest money	Usually ₹50,000 to a few lakh	Written receipt, refundable if title fails, paid by transfer
Advance on agreement	Up to 10% under RERA for a project; whatever you agree for a resale	Registered agreement, title documents in escrow with your advocate
Interim payments	The bulk	Milestone-linked, with documents handed over at each milestone
On registration	Balance	Registered deed, possession, keys, originals
Retention	5–10%	Held until mutation and no-dues certificates are in your name

CHAPTER 21

Token, advance and the agreement to sell

The token is not a legal instrument. It is a psychological one: once paid, you stop looking and the seller stops negotiating. That is exactly why it must be documented, and why it must be small.

The five things a token receipt must say

1. The full description of the property, matching the deed: survey or khata number, area, boundaries.
2. The total agreed consideration, and the amount being paid now.
3. That the amount is **refundable in full** if the seller fails to establish a marketable title free from encumbrance within a stated number of days.
4. The date by which the agreement for sale will be executed and registered.
5. That the property is not subject to any other agreement, and that the seller will not negotiate with anyone else for that period.

The agreement to sell: what it must contain

- The payment schedule tied to events, not dates alone.
- The documents the seller must deliver, and when.
- A warranty of title, and an indemnity if the warranty fails.
- The consequences of default by each side, with a stated interest rate.
- Possession date, and what happens if possession is delayed.
- A dispute-resolution clause naming the courts that will hear a dispute.
- For a project, the form prescribed under the state's RERA rules, with the carpet area, the completion date and the interest rates on both sides.

> **Get the agreement registered**
>
> An unregistered agreement to sell is weak evidence and, on the Supreme Court's 2025 reasoning, confers no interest in the property at all. Registration costs a fraction of the consideration and converts a promise into a public record. Section 17 of the Registration Act makes documents creating or declaring a right in immovable property compulsorily registrable; Section 49 keeps an unregistered one out of evidence.

CHAPTER 22

The 10% rule, and the four things RERA will not do for you

Section 13 of RERA is short and unusually concrete: a promoter cannot accept more than 10% of the cost of the apartment, plot or building as an advance or application fee without first entering into a written agreement for sale and registering it. That is the whole protection. It is real, and it is narrow.

What it does not do

- It does not verify the title of the land. The promoter declares a legal title and an encumbrance position under Section 4(2)(l)(A) and (B), supported by an affidavit. A declaration is not a verification, and a false declaration is a claim you have to pursue.
- It does not guarantee the project gets built. It channels money: 70% of realisations into a separate scheduled bank account per project, withdrawable only in proportion to certified completion, with an annual audit within six months of the financial year end.

- It does not make an unregistered project legal. The Section 3(2)(a) exemption is narrow — 500 square metres of land or eight apartments, counting all phases — and every phase of a phased project is a separate project.
- It does not replace your own search. RERA is a regulator with a portal, not a title registry.

Where to press, in order

1. Before the agreement: the registration number, the sanctioned plans, and the promoter's five-year project history on the portal.
2. At the agreement: the carpet area under Section 2(k), the completion date, the interest rate on both sides, and the two-thirds consent clause for any change to common areas.
3. After possession: the occupancy certificate under Section 11(4)(b), the two-month window in Section 19(10), and the five-year defect liability in Section 14(3), which requires the promoter to rectify a reported structural defect within 30 days at no charge.

> **The 70% account, in plain numbers**
>
> If a promoter has collected ₹10 crore from buyers in a project that is 50% complete, the statute allows withdrawal in proportion to completion, certified by an engineer, an architect and a chartered accountant. Read that as a buyer: your money is supposed to be locked to your building, not used to buy land for the next one. When a project stalls, the first question is where that account went.

CHAPTER 23

Nine clauses to insist on

These are not aggressive clauses. They are the clauses a well-advised seller will not object to, because they cost nothing if the seller intends to perform.

#	Clause	The words that make it work
1	Title warranty	The seller warrants a marketable title free from encumbrance and indemnifies the buyer against any defect
2	Document escrow	Original title documents are deposited with the buyer's advocate until registration, and listed in an annexure
3	Retention	5–10% of the consideration is held until mutation and no-dues certificates are issued in the buyer's name
4	Default interest	Interest at a stated rate per month for delay by either side, symmetrical
5	Conditional advance	The advance is refundable in full if title fails within 45 days
6	Possession and vacant delivery	Vacant possession on registration, with a stated penalty per month of delay
7	Dues allocation	All taxes, maintenance and utility dues up to registration are the seller's, with an indemnity
8	No parallel dealing	The seller confirms no other agreement, and will not create any charge pending completion
9	Dispute forum and notices	Named courts, and written notice by email to a stated address

One more clause that is not about money: a joint-allottee or co-owner consent clause, where every person with an interest signs the agreement. Disputes among family members are the most common source of an injunction that freezes a sale after you have paid.

The asymmetry to watch for

Read the default clauses together. If the seller's delay costs them nothing and your delay forfeits the advance, the agreement is not a contract, it is a trap. Symmetry is the test.

CHAPTER 24

Payment structure: keeping leverage until the last day

The amount you pay is a commercial question. The sequence you pay it in is a risk question, and it is entirely within your control.

Milestone	Typical share	What must be true before you pay
Token	1–2%	Receipt signed, refundable, title search begun
On registered agreement	Up to 10% (projects, under Section 13)	Agreement registered, documents deposited, EC pulled fresh
On delivery of the complete document set	15–25%	All twelve documents delivered and verified
On registration of the sale deed	Balance less retention	Deed registered in your name, receipt in hand
After mutation and no-dues	Retention, 5–10%	Khata or mutation in your name, society no-dues, utility transfers

Three rules that survive every negotiation

1. Never pay cash. A bank transfer creates a trail that a receipt cannot fake, and it is the first thing a court or an investigator will ask for.
2. Never pay the balance before the deed is registered. A registered deed is the transfer; everything before it is a promise.
3. Never release the retention before mutation. This is the only money you will ever hold over the paperwork that protects you later.

If the seller refuses a retention

Offer to hold it in a joint account or with the advocate instead. A seller who refuses every mechanism for holding back 5% until the mutation is done has told you what they expect the mutation to reveal.

CHAPTER 25

Cash, benami and the two-agreement offer

At some point in most Indian property negotiations, someone proposes that part of the price be paid in cash and left out of the deed. The offer is always framed as a favour to you: lower stamp duty, lower capital gains, a better price.

What actually happens

- The deed records a lower consideration, so your cost of acquisition for tax purposes is lower than what you really paid. When you sell, the gain is computed on the recorded figure.
- The stamp duty is lower by the duty on the difference — a saving that is smaller than the tax exposure it creates.

- The unrecorded cash is, by definition, unaccounted money, and the transaction can be examined under the Benami Transactions (Prohibition) Act, 2016 and the income-tax law.
- If the deal collapses, you must prove you paid money that the documents say you did not pay.

The two-agreement structure

Two agreements for one sale — one at the government guidance value, one at the real price — is the same idea with more paper. It creates two contradictory documents about the same transaction, both signed by you, either of which can be produced by the other side later.

> **The polite refusal that ends it**
>
> "I would like the entire consideration to appear in the deed. If the price needs to change to make that work, let us change the price, not the document." Most sellers accept this. The ones who do not have told you something about how the rest of the transaction will go.

Tax at the counter

Two tax points touch every purchase: tax deducted at source on the consideration, and the rule that stamp duty is generally payable on the higher of the stated consideration and the government's guidance value for the area (called ready reckoner, circle rate or guidance value depending on the state). The income-tax framework changed with the Income-tax Act, 2025, so confirm the current threshold, rate and form with your chartered accountant before the payment date rather than relying on last year's practice.

CHAPTER 26

Buying from a builder: four offers that are not what they look like

Builder marketing has a small vocabulary of techniques, and each has a specific question that dissolves it.

The offer	What it usually means	The question to ask
Pre-launch price	You are paying before approvals and before RERA registration, for a discount	Show me the RERA registration number and the sanctioned plan. Which authority approved it, and on what date?
Subvention scheme	Interest is "paid by the builder" for a period; the loan is in your name	Which bank, what is the interest rate after the subvention period, and what happens to my EMI if the project is delayed?
Assured returns	A rental or return promise for a few years, usually on serviced or commercial units	Is this promise inside the registered agreement, and who is legally liable if it is not paid?
No EMI till possession	A construction-linked disbursement structure	What is my total outflow if possession is delayed by two years, and who bears the pre-EMI interest?

Two structural checks decide more than any of these. First, whether the project should have been registered under Section 3 and was not. Second, whether the promoter's declared past projects show a pattern of delay — that disclosure is mandatory under Section 4, and it is on the project page.

The occupation certificate is not a formality

In February 2026 the Supreme Court refused to let a developer hand over possession without an occupancy certificate, on an "as is where is" basis, and left an 8% annual interest award standing. If possession is offered before the OC, the correct response is a written refusal, not a set of keys.

CHAPTER 27

Buying a plot: approval, layout and the "panchayat approved" trap

A plot is the most counterfeited product in Indian real estate, because there is no building to inspect and the buyer is buying a drawing.

The four approvals a plotted layout needs

1. A **title** that is clean and in the name of the layout owner, with the land use converted where required.
2. An **approved layout** from the planning authority, with the plot numbers, roads, open spaces and the areas reserved for public purposes marked on it.
3. A **zoning certificate** confirming residential use for this survey number.
4. For larger layouts, **environmental and utility clearances** — water, sewage, electricity — and a handover of internal roads to the local body.

What "panchayat approved" usually means

It means a gram panchayat has issued a no-objection or a building permission for structures in a village area. It does not mean the land has been converted to residential use, it does not mean a layout has been sanctioned, and it does not mean plots may lawfully be carved and sold. When you see the phrase, ask for the layout approval number and the conversion order number, in writing.

The five-minute plot test

Take the layout drawing to the planning authority's online map or the revenue map, and confirm that the survey number, the plot number and the road shown all exist. Then ask for the layout approval file number and check it at the counter. A layout that cannot be found in the authority's records is a field with a brochure.

The plot-specific red flags

- Plots sold by a "society" or "welfare association" that is not the recorded owner.
- A layout where the roads and parks are still in the promoter's name, with no handover.
- A plot whose number on the ground does not match the number in the approved layout.
- Any insistence on a cash component or on registration at a different sub-registrar office.

CHAPTER 28

Resale flats: the society, the dues and the handover

A resale flat has one risk a new flat does not: the building has a history, and the history is held by the society rather than the builder.

The society file you must see

- The share certificate in the seller's name, and the share register entry.

- The society's no-objection certificate for the transfer, with the transfer fee schedule.
- A maintenance no-dues certificate, plus the ledger for three years.
- The conveyance deed in favour of the society, or a clear statement that the land has not been conveyed.
- The occupation certificate and the approved plans for the building.
- Minutes of the last two general body meetings, and any approved special assessment.

The handover checklist for the day of registration

1. Original sale deed, registered, with the endorsement page and the receipt.
2. The society's NOC, share transfer form signed by both sides, and the original share certificate.
3. Keys, and a written handover of the flat's condition with meter readings.
4. Utility transfers: electricity, water, piped gas, and the municipal tax record.
5. The retention amount released only after the mutation and the no-dues certificate in your name.

The two questions that expose a problem society

"When was the last audit completed, and when was the last conveyance status discussed in a general body meeting?" A society that cannot answer both has a governance problem, and a governance problem in a co-operative society becomes your problem the day you need a signature.

Before you move to Part Five

The agreement contains all nine clauses, and you have read the default clauses together.
The payment schedule is milestone-linked, and a retention survives until mutation.
No part of the consideration is in cash, and the whole price appears in the deed.
You know what each of the builder offers actually is, and what it costs after the offer ends.

PART FIVE

Red flags and forgeries

Twenty-four flags, seven forgeries,
and the pressure pattern that precedes them.

PART FIVE

Red flags and forgeries

Everything in this part is something a buyer could have seen and chose to explain away. That is the nature of property fraud: it does not survive scrutiny, it survives optimism.

Use this part in two ways. Before the deal, as a checklist. During the deal, as a brake — if three or more apply, stop paying and take a week.

> **The scoring rule**
>
> Worksheet W8 scores these flags. The rule is simple: any single flag in the red list is a stop. Three or more amber flags is a pause until each one is answered in writing.

CHAPTER 29

Twenty-four flags, in the order they cost you money

Red — stop paying

1. The seller cannot produce the last registered sale deed.
2. The name on the deed does not match the PAN and Aadhaar exactly.
3. A mortgage appears on the EC with no registered release.
4. The seller is a power of attorney holder and the principal is dead or unreachable.
5. A pending suit for specific performance or partition names this property.
6. The land is agricultural on the revenue record and there is no conversion order.
7. Possession is with a tenant or a third party who will not vacate before registration.
8. The seller asks for the balance before the deed is registered.

Amber — pause and document

1. The EC search period offered is short, or the portal data does not cover the chain.
2. The extent in the deed differs from the extent in the revenue record.
3. The revenue record still shows a deceased ancestor as holder.
4. The boundaries in the deed do not match the site.
5. The building has no occupancy certificate.
6. The layout has no planning-authority approval, only a panchayat no-objection.
7. The project is not RERA-registered and the exemption does not obviously apply.
8. The project is registered but its quarterly progress report shows it is far behind.
9. The promoter has a past project with an unresolved delay.
10. The society has not been conveyed the land.
11. Maintenance or tax arrears are stated verbally but no certificate is given.
12. Part of the consideration is to be paid in cash.
13. The seller insists on a sub-registrar office other than the one with jurisdiction.
14. The property has changed hands twice within two years with no visible reason.
15. The seller resists an advocate's search or a retention.
16. The seller offers an agreement to sell plus a GPA in place of a sale deed.

Note what is not on either list: price, location, the seller's urgency, or how nice the house looks. Those are not title facts, and mixing them into a title decision is how the flags get explained away.

CHAPTER 30

Seven forgeries, and the check that catches each

Forgery	How it is done	The check
The fabricated deed	A deed typed on stamp paper that was never registered, with a typed "registration number"	Search the document number and year on the sub-registrar's index. A number that does not exist is the whole answer
The edited schedule	The last page is replaced with a schedule for a different, larger or better-located parcel	Match the schedule against the EC entry and the revenue record, and look for a mismatch in the page's paper, print and binding

Forgery	How it is done	The check
The phantom release	A release of mortgage that was never registered, shown to you as proof the loan is closed	Demand the registered release deed with its own document number, plus a bank no-dues letter
The double sale	The same flat sold to two buyers; the second gets possession while the first gets the deed	Search the index for later documents on the same property, and pull a fresh EC on the day of registration
The borrowed identity	A seller who looks like the person in the photograph on the identity documents	Video verification with the seller, PAN-Aadhaar name match, and the bank account in the same name
The revoked power	A power of attorney used after it was revoked, or after the principal died	A dated certificate from the principal, and a check that the sale deed is executed by the principal where possible
The paper layout	A layout drawing with plot numbers, sold as an approved layout	The layout approval number, verified at the planning authority, not on the promoter's website

One technical point worth knowing: registration is not a guarantee of genuineness. In 2025 the Supreme Court said expressly that the fact of registration gives notice to the world that a document has been executed, and does not confer unimpeachable validity on it. A forged deed that gets past a sub-registrar is still a forged deed, and the victim's remedy is a criminal complaint and a civil suit, not an argument with the registrar.

> **The cheapest anti-forgery measure**
> Pull the EC yourself, on the day of registration, from the government portal, on your own device. Not the seller's phone, not the broker's printout, not a PDF forwarded on WhatsApp.

CHAPTER 31

The pressure pattern

Fraud needs speed. Every genuine transaction can survive a week's delay; a fraudulent one usually cannot. So the technique is not the forged document, it is the deadline attached to it.

The six moves

- **The competing buyer.** "Someone else is paying tomorrow." A real competing buyer does not disappear because you asked for an EC.
- **The price expiry.** "This rate is only for today." Rates in this market are made of concrete and location, not of a clock.
- **The religious or festival deadline.** An auspicious date is a reason to register, never a reason to skip a search.
- **The offended seller.** "Do you not trust me?" Trust is not a document category.
- **The broker as gatekeeper.** "I will handle the papers, you do not need to meet the seller." You always need to meet the seller.
- **The partial disclosure.** A folder with nine of the twelve documents, handed over with confidence so that nobody counts.

The one sentence that tests everything

"I am ready to pay the token today, and I will complete in three weeks after my search. If that timeline does not work, I understand and we can stop here." A genuine seller says yes. The rest say something else, and the something else is your answer.

What to do when you have already paid and the flags appear

1. Stop all further payments immediately, in writing.
2. Preserve everything: receipts, messages, the documents you were given, and the dates you were given them.
3. Pull the EC and the index search yourself, and get the result dated.
4. Send a written notice setting out the defect and asking for the money back within a stated period.
5. If the money is not returned, a civil suit for recovery and specific performance, and a criminal complaint where forgery is involved, are the two tracks. Take an advocate's opinion on which to file first in your facts.

Before you move to Part Six

Worksheet W8 is filled in, and no red flag is unexplained.
You have pulled the EC yourself, on your own device, within the last 30 days.
Every promise the seller made is in the agreement, in writing, with a consequence attached.
You are willing to walk away. That is the only condition under which a negotiation is safe.

PART SIX

After you buy

Mutation, occupancy certificates, RERA remedies and the consumer commission.

PART SIX

After you buy

Registration is the middle of the process, not the end. Four things must happen in the weeks after, and one of them — mutation — is the one buyers forget until they try to sell.

When	What	Where
Day of registration	Registered deed, receipt, possession, keys, originals	Sub-registrar office
Week 1	Certified copy of the deed downloaded and stored	State registration portal
Week 2–8	Mutation or khata transfer in your name	Revenue office or municipal corporation
Week 2–8	Utility transfers: electricity, water, gas	Respective boards
Week 4–12	Society share transfer, if a flat	Society
Ongoing	Property tax in your name, and a fresh EC filed with the deed	Municipal corporation, your own file

CHAPTER 32

Registration day: the counter checklist

Registration is an administrative event with legal consequences, and it fails on small things: a missing witness, a PAN that does not match, a stamp duty shortfall, an expired slot.

1. Both parties present, with original identity documents, PAN, and two witnesses with their own identity documents.
2. The deed, printed and signed on every page, with the schedule matching the approved draft.
3. Stamp duty and registration fee paid, with the challan or e-stamp certificate in hand. Most states charge duty on the higher of the consideration and the government guidance value.
4. Evidence of payment of the consideration, matching the deed.
5. The original title documents, listed in an annexure, to be handed over after registration.
6. The TDS certificate or challan, where tax was deducted — confirm the current requirement with your accountant.
7. The biometric or e-sign process completed for all executants, and the receipt collected.

> **The 30-second check before you sign**
> Turn to the schedule. Read the survey or khata number, the area and the four boundaries aloud, and have the seller confirm each one. Then check that the consideration figure in words and figures agree. Most post-registration disputes are about one of those two pages.

The four-month rule, again

A sale deed should be presented for registration within four months of execution, with a further condonable period of up to four months on payment of a fine under the proviso to Section 34. Do not let a deed sit signed and unregistered: an unregistered conveyance transfers nothing, and the seller remains the owner in every register that matters.

CHAPTER 33

Mutation and khata transfer

Mutation is the revenue administration catching up with the registration. It is not a transfer, it is an acknowledgement, and it is the step that makes your ownership visible to everyone who is not a lawyer.

Why it matters more than it looks

- Property tax demands and receipts in your name are the everyday proof of possession that a court will look at first.
- Utility connections, building permissions and trade licences are issued against the revenue or municipal record.
- A future buyer's lawyer will check the record. A record that still shows the previous owner turns a clean sale into a delayed one.
- Compensation, acquisition notices and scheme benefits go to the name on the record.

What to file

The registered deed, the receipt, identity and address proof, the previous holder's details, and the prescribed application form, with the fee. Timelines vary by state and are often published in the department's citizen charter. Keep the acknowledgement, and follow up in writing if the entry is not updated within the stated period.

Two records, two offices

In urban areas you may need both a revenue mutation and a municipal khata or property-tax transfer. Doing one and not the other leaves exactly the kind of mismatch that stalls the next sale. Ask both offices, in the same week, what each needs.

CHAPTER 34

If you took possession without an occupancy certificate

This is common: the builder offers keys, the family needs to move, the OC is "coming next month". Two years later the OC has not come, the association cannot be formed properly, and the flat cannot be sold cleanly.

What the law says

Under RERA Section 11(4)(b), obtaining the completion certificate or the occupancy certificate is the promoter's responsibility, and it must be made available to the allottees or their association. On 20 February 2026 the Supreme Court held, in *Parsvnath Developers Ltd. v. Mohit Khirbat*, that a homebuyer cannot be compelled to accept possession without an OC, that obtaining it is a statutory pre-condition to lawful delivery of possession, and that its absence is a deficiency in service. The Court declined to accept possession on an "as is where is" basis and left the national commission's award, including 8% annual interest, in place.

What you can do now

1. Put your refusal or your objection in writing, dated, to the promoter — even if you have already taken the keys. The record matters.
2. Ask the promoter for the completion certificate application number and the authority's file number, and follow up directly with the authority.
3. Raise it with the association, because the OC is a building-level issue, not a flat-level one.
4. If the promoter will not move, the routes are a complaint before the RERA authority under Section 31, and a consumer complaint for deficiency in service.
5. Do not accept a "part OC" or a "floor-wise OC" as compliance unless the authority has actually issued it for your floor.

What the missing OC costs you

Utility connections, a home loan against the property, a clean resale, and the association's ability to take over the building. It is not a document problem; it is a liquidity problem attached to your largest asset.

CHAPTER 35

RERA remedies that actually move money

RERA gives a buyer five usable levers. Each has a section number, and quoting the section changes the tone of a letter.

Section	What it gives you	When to use it
Section 12	Compensation, or full refund with interest, if you relied on a false statement in an advertisement or prospectus	Amenities promised and withdrawn; false claims about approvals

Section	What it gives you	When to use it
Section 13	A bar on taking more than 10% before a registered agreement for sale	Booking advances demanded on a receipt
Section 14(2)	No change to sanctioned plans or common areas without consent — two-thirds of allottees for common areas, yours for your unit	Layout changed after booking
Section 14(3)	Five-year defect liability from possession; rectify within 30 days at no charge, failing which compensation	Structural and workmanship defects
Section 18	Interest for every month of delay, or refund with interest if you choose to exit	Delayed possession
Section 19	Information rights, and possession within two months of the occupancy certificate	Documents and plans withheld
Section 31	Filing a complaint before the Authority or the Adjudicating Officer	Any of the above

The RERA framework aims to decide cases within sixty days of the application or appeal, though real timelines vary by state. What matters practically is the paper you file: the agreement, the payment proof, the promised date, the actual status, and the specific section you are invoking.

> **Keep the advertisement**
> Section 12 turns an advertisement into an enforceable representation. Screenshot the project page, the brochure and the sales email on the day you book, and store them with the agreement. Two years later, that screenshot is evidence.

CHAPTER 36

The consumer commission route, and the two-year clock

Where RERA does not fit — a resale purchase, a service deficiency by a society, a builder outside a registered project — the consumer commission is the other route, and it is cheaper and faster than a civil suit.

Which commission

Value of the goods or services paid as consideration	Forum	Filing fee
Up to ₹5 lakh	District Commission	Nil
Above ₹5 lakh, up to ₹10 lakh	District Commission	₹200
Above ₹10 lakh, up to ₹20 lakh	District Commission	₹400
Above ₹20 lakh, up to ₹50 lakh	District Commission	₹1,000
Above ₹50 lakh, up to ₹1 crore	State Commission	₹2,000
Above ₹1 crore, up to ₹2 crore	State Commission	₹2,500
Above ₹2 crore	National Commission	₹3,000 to ₹7,500 by slab

Jurisdiction is decided by the value paid as consideration, not by the compensation you claim. The complaint is filed on e-Jagriti, which replaced e-Daakhil on 1 January 2025, and a notarised affidavit is mandatory. You may file where you live or work, or where the cause of action arose. The limitation is

two years from the date the cause of action arose, extendable only on sufficient cause recorded by the commission. The opposite party gets 30 days to reply, extendable by 15.

What to claim

- Refund of the amount paid, with interest.
- Compensation for the deficiency, and for mental agony and hardship where the facts support it.
- Costs of the proceedings.
- Interest at a rate the commission considers just — 8% has been upheld in possession-delay cases.

The choice that matters

Ombudsman-style schemes do not cover property purchases by individuals, and RERA covers projects, not resales. For a resale gone wrong, your realistic routes are a civil suit for specific performance or recovery, and a consumer complaint where the seller is a trader or a builder. Take an advocate's view on which to file first — the two-year consumer clock is shorter than the civil limitation, so protect it.

Before you move to Part Seven

The mutation or khata transfer is filed, with the acknowledgement kept.
The certified copy of the deed is downloaded and stored in two places.
Every promise about the occupancy certificate or the society is a written record, not a memory.
The two-year consumer clock and the RERA complaint window are diarised, in case either is needed.

PART SEVEN

The eight worksheets

Print them. Fill them in by hand.
Date every line.

PART SEVEN

The eight worksheets

Print these. A worksheet that lives in a PDF you never open is decoration. Eight pages, one per check, filled in by hand with dates — that is what a title file looks like when it is done properly.

Worksheet	What it does	When you use it
W1	The twelve-document checklist	Before the token
W2	The 30-minute online verification log	The evening you get the property details
W3	The EC entry decoder	The moment the EC arrives
W4	The title chain chart	When you have three or more deeds
W5	Twenty questions for the seller	The first serious meeting
W6	The nine-clause checklist	Before you sign the agreement
W7	Payment and retention tracker	From token to mutation
W8	The red-flag score sheet	Before every payment

NOTES

WORKSHEET W1

The twelve-document checklist

Tick only when you have seen the original or a government-issued digital copy. Note where it came from and when.

#	Document	Seen	Source and date	Gap or note
1	Registered sale deed (current owner)	☐		
2	Chain of earlier deeds / mother deed	☐		
3	Encumbrance certificate (30 years)	☐		
4	Revenue record (khata / 7-12 / patta / RTC / jamabandi)	☐		
5	Mutation order or khata transfer	☐		
6	Property tax receipts and no-dues	☐		
7	Sanctioned building plan	☐		
8	Commencement certificate	☐		
9	Occupancy or completion certificate	☐		
10	RERA registration and project page	☐		
11	Society NOC, share certificate, maintenance no-dues	☐		
12	Searches: e-Courts, CERSAI, ROC, IBBI	☐		

THE THREE DOCUMENTS STILL MISSING, AND WHO WILL DELIVER THEM BY WHEN

NOTES

WORKSHEET W2

The 30-minute online verification log

One row per search. Record the null results too — a "no record found" with a timestamp is evidence.

#	Search	Portal or office	Result	Time and date
1	Parcel identifiers			
2	RERA project check			
3	Encumbrance certificate			
4	Revenue record			
5	e-Courts / IBBI			
6	CERSAI / ROC			
7	Identity match			

WHAT DID NOT MATCH, AND WHAT THE SELLER SAID ABOUT IT

NOTES

WORKSHEET W3

The EC entry decoder

Read the EC newest first. One row per entry. The last column is the only one that decides anything.

Doc no / year	Nature of document	Parties	Extent	Consideration	Released?
					☐
					☐
					☐
					☐
					☐
					☐
					☐
					☐

UNMATCHED MORTGAGE, CHARGE OR ATTACHMENT FOUND (YES / NO, AND THE DOCUMENT NUMBER)

SEARCH PERIOD COVERED, AND WHICH YEARS STILL NEED A MANUAL SRO SEARCH

NOTES

WORKSHEET W4

The title chain chart

One line per transfer, oldest at the bottom. Every link must name the same property and the same person.

Year	Transferor	Transferee	Document no.	Break in chain?

THE BREAK, AND THE DOCUMENT THAT CLOSES IT (SUCCESSION, PARTITION, DECREE, GRANT)

FIRST YEAR COVERED BY THE CHAIN, AND WHETHER THAT IS FAR ENOUGH BACK FOR THIS PROPERTY TYPE

NOTES

WORKSHEET W5

Twenty questions for the seller

Ask them in this order. The order matters, because each answer narrows the next question.

#	Question	Answer	Document offered
1	When did you buy this property, and what was the document number?		
2	Can I see that deed, with the registration endorsement page?		
3	How did the person you bought it from get it?		
4	Has the property ever been mortgaged? Which bank, and is the release registered?		
5	Has any part of it ever been inherited, partitioned or gifted?		
6	Is there any pending or past litigation involving this property or your family?		
7	Has the revenue record been mutated in your name? Can I see the order?		
8	Is the property tax paid up to date? Can I see the receipts?		
9	Has the building got an occupancy certificate? What is the number?		
10	For a flat, has the society been conveyed the land, and is the share certificate in your name?		
11	Are there any maintenance or utility dues, and will you clear them before registration?		
12	Is anyone else in possession, and under what right?		
13	Has this property been offered to anyone else, or is any agreement signed with anyone?		
14	Is any part of the property under acquisition, road widening or a reservation in the development plan?		
15	Is the land converted to residential use, and can I see the order?		
16	Who owns the road, the park and the common areas?		
17	Are there any unauthorised constructions, and what is the regularisation status?		
18	Will you accept a retention until mutation is complete?		
19	Will you sign a warranty of title and an indemnity?		
20	Why are you selling?		

Question 20 is not small talk. A seller who cannot explain why they are selling in one sentence, without a story that keeps changing, is a seller worth a second search.

WORKSHEET W6

The nine-clause checklist

Initial each clause you have actually read in the draft, not the one you asked for.

#	Clause	In draft?	Read and initialled
1	Title warranty and indemnity		
2	Original documents deposited, listed in an annexure		
3	Retention of 5–10% until mutation and no-dues		
4	Symmetrical default interest		
5	Advance refundable in full if title fails in 45 days		
6	Vacant possession on registration, with a delay penalty		
7	Dues up to registration are the seller's, with an indemnity		
8	No parallel dealing or charge pending completion		
9	Named courts, written notice by email		
10	All co-owners and joint allottees have signed		

CLAUSES THE SELLER REFUSED, AND THE REASON GIVEN

NOTES

WORKSHEET W7

Payment and retention tracker

One row per payment. The bank reference is the only part that cannot be argued with later.

Date	Stage	Amount	Paid to	Bank ref / UTR	Document received

TOTAL PAID SO FAR, TOTAL OUTSTANDING, AND THE RETENTION STILL HELD

WHAT THE RETENTION IS WAITING ON, AND THE DATE IT CAN BE RELEASED

NOTES

WORKSHEET W8

The red-flag score sheet

Any red flag is a stop. Three or more amber flags is a pause until each is answered in writing.

Level	Flag	Applies	Answered how
Red	Seller cannot produce the last registered sale deed	☐	
Red	Name on the deed does not match PAN and Aadhaar	☐	
Red	Mortgage on the EC with no registered release	☐	
Red	Seller is a power of attorney holder, principal unreachable	☐	
Red	Pending suit naming this property	☐	
Red	Agricultural land with no conversion order	☐	
Red	Third party in possession who will not vacate	☐	
Red	Balance demanded before registration	☐	
Amber	Short EC period, or portal data does not cover the chain	☐	
Amber	Extent differs between deed and revenue record	☐	
Amber	Revenue record shows a deceased holder	☐	
Amber	Boundaries do not match the site	☐	
Amber	No occupancy certificate	☐	
Amber	Layout approval missing, only a panchayat NOC	☐	
Amber	Project not RERA-registered, exemption unclear	☐	
Amber	Registered project far behind on progress reports	☐	
Amber	Promoter with an unresolved delay in a past project	☐	
Amber	Society not conveyed the land	☐	
Amber	Dues stated verbally, no certificate	☐	
Amber	Part of the price to be paid in cash	☐	
Amber	Different sub-registrar office insisted on	☐	
Amber	Two sales within two years, no reason	☐	
Amber	Seller resists an advocate's search or a retention	☐	
Amber	Agreement plus GPA offered instead of a sale deed	☐	

DECISION: PROCEED / PROCEED WITH CONDITIONS / WALK AWAY — AND THE DATE

NOTES

APPENDIX

Sources, dates and how to check them yourself

Every rule and figure in this book was checked in November 2026. Where a number is state-specific, the state and the source are named so you can verify the current position before you rely on it.

Statute and regulation

Source	What was taken from it
The Real Estate (Regulation and Development) Act, 2016, as amended (India Code text, 15 May 2026)	Sections 3, 4, 5, 9, 11, 12, 13, 14, 18, 19 and 31: registration thresholds, the 70% separate account, the 10% rule, the two-thirds consent, the five-year defect liability, the two-month possession window
Registration Act, 1908	Section 17 (compulsory registration), Section 23 and the proviso to Section 34 (the four-month window and condonation), Section 49 (consequences of non-registration)
Transfer of Property Act, 1882	Sections 53A and 54 — part performance as a shield, and sale only by registered instrument
Benami Transactions (Prohibition) Act, 2016	The prohibition on benami arrangements
Consumer Protection Act, 2019 and the Consumer Protection (Jurisdiction) Rules, 2021	Pecuniary limits, the two-year limitation, filing on e-Jagriti

Judgments

- *Suraj Lamp & Industries (P) Ltd. v. State of Haryana*, (2012) 1 SCC 656 — only a registered deed of conveyance transfers title; GPA sales do not.
- *M.S. Ananthamurthy v. J. Manjula*, 2025 INSC 273 — an unregistered agreement to sell with a power of attorney creates no proprietary interest; a GPA is revocable unless coupled with interest.
- *Vinod Infra Developers Ltd. v. Mahaveer Lunia*, 2025 INSC 772 — an unregistered agreement to sell confers no title and does not protect possession.
- *Ramesh Chand (D) through LRs v. Suresh Chand*, decided 1 September 2025 (2025 INSC 1059) — a power of attorney is not a sale; Section 53A is a shield available only to a transferee in possession.
- *Parsvnath Developers Ltd. v. Mohit Khirbat*, Supreme Court, 20 February 2026 — possession cannot be forced without an occupancy certificate; the 8% interest award was left undisturbed.

Government programmes and portals

Source and date	What was taken from it
Department of Land Resources, PIB release, 1 January 2026	DILRMP saturation figures: 97.27% of villages with computerised records of rights, 97.14% of cadastral maps digitised, 84.89% of villages with text and maps linked, 19 states with digitally signed downloads, banks verifying mortgages in 406 districts
PIB release, 10 September 2026	DILRMP 3.0 operational guidelines: ₹565.50 crore outlay for 2026–2031, 14-digit Bhu-Aadhaar for every parcel, Land Stack, 75 Registration Seva Kendras, NAKSHA

Source and date	What was taken from it
PIB release, 1 January 2026	ULPIN assigned to over 36 crore parcels across 29 states and union territories as of November 2025; Land Stack pilot in Chandigarh and Tamil Nadu from 31 December 2025
Karnataka Department of Stamps and Registration, Kaveri 2.0 FAQs	Online EC from 1 April 2004, Form 22 for earlier years, Form 15 / 16 / 17 formats, the name-based search
Telangana Registration and Stamps Department, encumbrance statement page	Online EC available for transactions after 1 January 1983; search by document number, house details or survey number
IGR Maharashtra, ease-of-doing-business page	Free Index-II search from 1985, paid search, property card, CERSAI and ROC charge checks
e-Jagriti portal, FAQs	Filing fees by slab, the mandatory notarised affidavit, hybrid hearings
National Consumer Disputes Redressal Commission orders and Supreme Court orders, 2025–2026	The occupancy certificate line of authority

How to keep this book current

Once a year, re-check four things: your state RERA portal's project page layout, your state registration portal's EC data start year, the consumer commission filing fee slab, and whether your state has begun issuing ULPIN for urban parcels. Those four are the parts that change. The law in Part Three has been stable for a decade.

DISCLAIMER

Read this before you rely on anything here

This book is educational material. It is not legal advice, it is not a title certificate, and it does not create a lawyer-client relationship. Property law in India is state-specific, fact-specific and changes; a document that is fatal in one state is routine in another.

No amount of checklists replaces an advocate who has read the originals, searched the registers in your jurisdiction and signed an opinion. What this book is designed to do is make you a better client: able to ask the right questions, able to spot the document that is missing, and able to refuse a deal that feels wrong before the money leaves your account.

Every figure, section number and portal detail was checked in November 2026 against the sources listed in the appendix. Portals are renamed, fees are revised and judgments are delivered continuously. Verify the current position before you act, and where a fee or a data period is stated, confirm it on the government portal itself.

> **One last thing**
>
> The most expensive sentence in Indian property is "the papers are all fine, sir". The second most expensive is "we can do the paperwork later". Both are free to say and cost a lifetime to hear.

The Indian Property Title Check Playbook 2026-27 — published by Digitalaikart, a brand of UTILITYNEST, Ichgam, Budgam, Jammu & Kashmir 191111. Edition 1, November 2026.

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